

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 17, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV03006

LOPEZ v. GOMEZ

**DEFENDANT TOBIA’S MOTION TO COMPEL DEPOSITION OF
DEFENDANT GOMEZ**

The motion to compel is granted but the request for sanctions is denied.

I. COMPLAINT AND MOTION

This is a motor vehicle accident case filed by plaintiffs. The complaint asserts that defendant Jhonys Gomez (“Gomez”) was under the influence of alcohol and other substances when driving eastbound on Highway 129. He allegedly attempted to pass a vehicle in front of him and, in doing so, drove into the westbound traffic lane, striking head-on with plaintiffs’ vehicle. The vehicle directly behind plaintiffs also struck them, driven by defendant Tobia (“Tobia”). The complaint alleges defendant, Castillo, owned and insured the vehicle driven by Gomez. Defendant Guerrero owned and insured the vehicle driven by Tobia. Gomez, through his counsel, answered the complaint on March 12, 2025.

Tobia brings this motion to compel Gomez to appear at deposition and for an award of monetary sanctions in the amount of \$1,285.00 against him. On February 27, 2026, Tobia served a Notice of Taking of Deposition of Gomez, with the deposition to take place on March 17, 2026. (Ex. A to Decl of Vierra.) A paralegal advised Tobias’s counsel that Gomez’s attorney was unavailable that date. Counsel for Tobia and Gomez then exchanged emails about trying to reschedule the deposition, and problems contacting Mr. Gomez. On April 23, 2026, counsel for Gomez wrote to counsel for Tobia, conveying that their client was not responding to communications from them. (Decl. of Vierra at ¶ 8, ex. B.)

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In opposition, counsel for Gomez argues the motion should be denied because Tobia did not show that Gomez willfully did not appear for his deposition – there is no certificate of non-appearance. The opposition characterizes the failure to appear as a scheduling issue and that because Gomez cannot be reached, he did not know about this deposition. Counsel states he has retained a private investigator to locate Gomez. (Decl. of Fleming at ¶¶ 5-6.)

In reply, Tobia asserts that because the attorneys agreed they “adequately met and conferred for the purposes of this motion, Gomez waived any requirement for Defendant Tobia to actually attend the deposition and obtain a certificate of a non-appearance.” (Reply at p. 2.)

II. LEGAL STANDARDS AND DISCUSSION

Code of Civil Procedure section 2025.280, subdivision (a) provides that “[t]he service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action ... to attend and to testify” Section 2025.240, subdivision (a) states, in part, that “[i]f after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” Subdivision (b) of this section states a motion under subdivision (a) shall contain both of the following:

“(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code of Civ. Proc. § 2025.450, subd. (b).)

Here, defendant Tobia noticed Gomez’s deposition for March 17, 2026, and served the notice on Gomez’s counsel on February 27, 2025. Counsel for Gomez was not available on March 17. The parties continued their meet and confer efforts. Eventually, Gomez’s counsel conveyed that Gomez was not responding to their messages. Counsel for Tobia and Gomez agreed that they had adequately met and conferred and counsel for Tobia informed Gomez’s

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counsel that he would seek a court order compelling Mr. Gomez's deposition and request sanctions against him individually. (Ex. B to Decl. of Vierra.)

Gomez does not cite any case law or statute that requires a certificate of non-appearance to support a motion to compel. Here, it appears that it would have been futile for counsel for Tobia to appear on March 17 (or another date) because Mr. Gomez was and is unreachable, according to his own counsel. Therefore, the motion to compel is granted. Defendant Gomez is directed to appear for his deposition at a mutually agreed upon date within the next 45 days.

Code of Civil Procedure section 2025.450, subdivision (g) states that the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent, unless the court finds that the one subject to sanction acted with substantial justification or that other circumstance would make the imposition of sanctions unjust. The Court declines to award sanctions against Gomez at this time because he was not aware of the deposition or his requirement to attend because his counsel cannot reach him. Second, the Court notes that Mr. Gomez was served via substituted service, so it is not clear if he is even aware of the case filed against him.

No. 23CV01708

SEASCAPE RESORT OWNERS' ASSN. v. SEASCAPE RESORT, et al.

DEFENDANT SEASCAPE RESORT LTD.'S DEMURRER TO AND MOTION TO STRIKE POWER WEST PROPERTIES, INC.'S FIRST AMENDED COMPLAINT IN INTERVENTION

The Court needs additional time to review the papers and provide a ruling. Matter will be reset at the hearing.

DEFENDANT SEASCAPE RESORT LTD.'S DEMURRER TO AND MOTION TO STRIKE FIRST AMENDED COMPLAINT IN INTERVENTION BY INTERVENORS CAPORN, WALLIS, AND MANRAO

The Court needs additional time to review the papers and provide a ruling. Matter will be reset at the hearing.

PLAINTIFF STACIE POWER'S MOTION TO BE RELIEVED

The Court grants the unopposed motion and will sign the order submitted by counsel.

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(UNOPPOSED) INTERVENOR GEORGE LANGFORD'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT IN INTERVENTION

The unopposed motion is granted. Moving party shall file the amended pleading no later than July 31, 2026.

DEFENDANT SEASCAPE RESORT LTD.'S MOTION TO EXPUNGE NOTICE OF PENDENCY OF ACTION RECORDED BY INTERVENORS CAPORN ET AL.

The motion is granted. Intervenor Marcia Caporn, Marcia Wallis, and Neelu Manrao ("Intervenors") failed to properly serve the notice, failed to identify the real property in the notice, and their first amended complaint in intervention fails to include any real property claim that would support any lis pendens. Intervenor further failed to establish by a preponderance of the evidence the probable validity of their claims. The Notice of Pendency of Action is therefore expunged and defendant shall submit a revised proposed order specifying that the April 8, 2026 recorded Notice and any later recorded Notice are expunged.

Intervenors' first amended complaint in intervention ("FACI") – the operative complaint -- seeks seven causes of action: violation of Civil Code section 4600 [exclusive use of common area]; breach of fiduciary duty; enforcement of governing documents (Civil Code section 5975); prescriptive easement; declaratory relief; unfair competition; and quiet title. (FACI, February 25, 2026.)

The parties discuss Intervenor's initial Notice of Pendency of Action ("Notice"), which prompted this motion, and their re-recording of a new one (designed to correct errors in service). For purposes of this motion, the Court considers the re-recorded Notice to be the operative one and that defendant's motion relates to it. Defendant also argues that the Notice is void since Intervenor failed to send it to the proper address on the assessor's roll. Nonetheless, defendant actually received mailed notice since it was also served on its counsel.¹ However, the Court notes that the June 3, 2026, filed Notice also includes a letter from the Santa Cruz County Recorder indicating the document was returned to Intervenor without recording, which necessarily means that the second Notice is also void for failure to comply with statutory requirements (recording). This is a separate ground for granting the motion. (Code Civ. Proc., § 405.20.)

A court shall order a notice of lis pendens expunged if it determines (1) that the pleading on which the notice is based does not contain a real property claim (Code Civ. Proc., § 405.31); (2) that the claimant has not established, by a preponderance of the evidence, the probable

¹ Defendant states it could not find the second Notice in the court record, but it appears with a filing date of June 3, 2026.

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validity of a real property claim (Code Civ. Proc., § 405.32); or (3) that adequate relief can be secured by an undertaking (Code Civ. Proc., § 405.33). (*Shoker v. Superior Court of Alameda County* (2022) 81 Cal.App.5th 271, 278.) “Unlike most motions, the party opposing a motion to expunge bears the burden to show the existence of a real property claim.” (*J&A Mash & Barrel, LLC v. Superior Court of Fresno County* (2022) 74 Cal.App.5th 1, 33.)

Only three of the seven causes of action contemplate any real property claim -- violation of Civil Code section 4600, prescriptive easement; and quiet title (first, fourth, and seventh causes of action).² Intervenor’s substantive allegations in those claims are that the swimming pools at the Resort are common areas, not Exclusive Use Common Areas (“EUCA”) as claimed by defendant. (FACI at ¶¶ 136-148, 175-189, 213-223.) A “real property claim” is any cause of action which, if meritorious, would affect title to, or the right to possession of, specific real property; or the use of an easement identified in the pleading (other than an easement obtained pursuant to statute by any regulated public utility). (Code Civ. Proc., § 405.4.)

The Court finds that resolution of these claims will not affect *title* to the common areas at issue, merely *use* by those who own units in the Resort. Therefore, no real property claim has been stated. Even if the Court were to find these to be real property claims, Intervenor has failed to establish, by a preponderance of the evidence, the probable validity of the claims. (Code Civ. Proc., § 405.32.) The single Caporn declaration merely cites to 150 pages of exhibits without any explanation or description of the probable validity of Intervenor’s claims. (Caporn Declaration ¶¶ 6-23, Exs. 1-20.)

Based on the foregoing, the Court grants the motion.

As prevailing party, defendant is entitled to recover attorneys’ fees and costs incurred in connection with this motion unless it finds the responding party acted with substantial justification or circumstances make an award unjust. (Code Civ. Proc., § 405.38.) Defendant seeks \$4,751.26 (9.4 total and anticipated hours at an hourly rate of \$495.00). The Court finds defendant’s request is excessive and instead grants \$1,563.76 in fees and costs related to this motion (three hours at \$495.00 plus \$78.76 in filing fees). Intervenor shall pay that amount to defendant no later than July 31, 2026.

Defendant’s request for judicial notice is granted. The Court declines to rule on defendant’s 50 separate objections to evidence related to the Caporn Declaration; they are largely immaterial to the Court’s ruling.

² Violation of governing documents (third cause of action) does not affect title to or possession of real property. (*Ward v. Superior Court* (1997) 55 Cal.App.4th 60, 65.)

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**INTERVENORS CAPORN ET AL.'S MOTION FOR RECONSIDERATION AND
VACATUR OF ORDER GRANTING SUMMARY ADJUDICATION**

The motion is denied.

Within 10 days after service upon the party of written notice of entry of the order (extended for service) and based upon new or different facts, circumstances, or law, a party may make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. (Code Civ. Proc., §§ 1008, 1013.)³

The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden under section 1008 “is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at [the hearing].” (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.) A party seeking reconsideration based on new or different facts, circumstances, or law must provide a satisfactory explanation for not presenting it earlier. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.) The procedural prerequisites set forth for reconsideration of orders in Section 1008 are jurisdictional, exclusive, and controlling. (*Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 391.)

Court orders granting or denying requests for reconsideration are reviewed for abuse of discretion. (*Monroy v. City of L. A.* (2008) 164 Cal.App.4th 248, 265; *County of L. A. v. James* (2007) 152 Cal.App.4th 253, 256; *Forrest v. Dept. of Corps.* (2007) 150 Cal.App.4th 183, 204, disapproved on other grounds by *Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1172; *White v. Lieberman* (2002) 103 Cal.App.4th 210, 219-220.)

Intervenors Marcia Caporn, Marcia Wallis and Neelu Manrao (“Interventors”) articulate the grounds for the motion as:

1. Intervenors were not permitted to participate in the summary adjudication proceedings and were denied the opportunity to present material evidence on dispositive issues;
2. The record presented to the Court was incomplete due to procedural limitations and the failure of the Association to present critical evidence;
3. The Order rests on Seascape Resort Ltd.’s reliance on preliminary and non-operative permit materials rather than the governing CC&Rs and controlling County law; and

³ All future statutory references are to the Code of Civil Procedure, unless otherwise stated.

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4. As applied, the Order materially alters established property rights and imposes obligations not contained in the governing documents, without the member approval required by law.

Their motion is made “pursuant to section 1008 and the Court’s inherent authority to reconsider and correct interim rulings.” (Notice, April 27, 2026.)

The Court finds Intervenorors have not satisfied section 1008. First, they have filed this motion before a different judge than the judge who issued the December 31, 2025 order on the underlying motion for summary adjudication. (*In re Oliveres* (2015) 238 Cal.App.4th 1242, 1248.) Second, their motion was filed more than 10 days after the ruling and more than 10 days after they were permitted to enter the case as intervenors, making their motion (filed 77 days after they filed their initial complaint in intervention) untimely. Finally, their grounds are not new or different facts, circumstances or law. Instead, they seek to unwind a prior judge’s ruling based on their interpretation of the plaintiff’s presentation of evidence. That is not a proper basis for reconsideration.

The Court declines to rule on the parties’ requests for judicial notice or objections to evidence as they are immaterial to its ruling. The Court also cautions moving parties regarding their failure to adhere to established procedural rules; their reply exceeded the page limit without leave and they included new material in their reply via additional declarations. (Cal. Rules of Court, rule 3.113(d), (g).) The Court did not consider the declarations filed in reply (27 declarations filed on June 25, 29, and July 10, 2026). (Cal. Rules of Court, rule 3.1300(d).)

MOTION FOR SUMMARY ADJUDICATION BY INTERVENORS MARCIA WALLIS, MARCIA CAPORN, AND NEELU MANRAO

The motion is denied. Disputed material facts exist as to the first issue for summary adjudication identified by moving parties – that a prescriptive easement exists over the pool and recreational facilities in favor of the Association. The second issue – that self-rental of units within Seascape Resort is lawful and not prohibited under the governing project documents – will not dispose of any of Intervenorors’ causes of action and is therefore not a proper basis for summary adjudication.

Counsel for moving parties shall also be prepared to confirm if the memorandum of points and authorities filed on March 23, 2026 at 8:45 p.m. is the same version as that served on opposing counsel. (Page citations in the Walton Declaration indicate that opposing counsel may have a different version of the memorandum.)

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I. LEGAL STANDARDS

In a summary judgment motion, the court must determine from the evidence presented that “there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law....” (Code Civ. Proc. §437c, subd. (c) (473c).) In making this determination, the court may rely on “affidavits, declarations ... and matters of which judicial notice shall or may be taken.” (§ 437c, subd. (b).) The plaintiff “may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.” (§ 437c, subd. (p)(2).)

The court’s sole function on a motion for summary judgment is issue-finding, not issue determination. To be material, the fact must relate to some claim or defense in issue under the pleadings and be in some way essential to the judgment; if proved, it could change the outcome of the case. “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof...” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) If there is a single such issue, the motion must be denied. (*Versa Tech., Inc. v. Superior Court* (1978) 78 Cal.App.3d 237, 240.)

A plaintiff reaches its burden on summary judgment by showing prima facie evidence for each element of its cause of action. (§ 437c, subd. (p); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519; *California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630.) The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue. (*Ibid*). Courts “liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary adjudication as a matter of law. (§ 437c, subd. (c); *Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. If the moving party carries this burden, it causes a shift and the opposing party is then subject to its own burden of production to make a prima facie showing that a triable issue of material fact exists. (*Id.* at p. 850.) Each material fact must have a citation to supporting evidence. (§ 437c, subd. (b)(1).) If a triable issue is raised as to any of the facts in the separate statement, the motion may be denied. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.) Opposition declarations are to be liberally construed while the

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moving party's evidence is strictly scrutinized. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.)

“The separate statement ‘is an indispensable part of the summary judgment or adjudication process’ because it plainly identifies factual issues and allows the trial court to determine whether a trial is required to establish those facts and resolve the dispute. [Citations.] ‘Opposition separate statements must cite to facts and evidence for the evidence to be considered by the court.’ [Citations.]” (*Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 Cal.App.5th 218, 226.) “Admissible evidence is required to show that disputed issues of material fact exist. [Citations.] ‘Responsive evidence that ‘gives rise to no more than mere speculation’ is not sufficient to establish a triable issue of material fact.’ [Citations.]” (*Ibid.*)

II. DISCUSSION

A. *Ethical obligations of counsel*

The Court cautions moving parties to ensure their legal authorities are correct, complete, and support the propositions offered. This is the second reminder by this court to these parties. (See December 5, 2025, ex parte order.) There is again evidence that several of their citations are either misquoted, used for propositions not supported by the case, or misleading. (Walton Declaration.) The Court has verified four of the seven errors identified by opposing counsel.

“‘[T]here is nothing inherently wrong with an attorney appropriately using AI in a law practice,’ but attorneys must check every citation to make sure the case exists and the citations are correct. (*Id.* at p. 446.) Attorneys should not cite cases for legal propositions different from those contained in the cases cited. (See *id.* at pp. 446–447.) And attorneys cannot delegate this responsibility to any form of technology; this is the responsibility of a competent attorney. (*Id.* at p. 446.) ‘Honesty in dealing with the courts is of paramount importance, and misleading a judge is, regardless of motives, a serious offense.’ (*Paine v. State Bar of California* (1939) 14 Cal.2d 150, 154 [93 P.2d 103].)” (*People v. Alvarez* (2025) 114 Cal.App.5th 1115, 1119, citing *Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426.)

B. *Disputed material facts exist as to whether any prescriptive easement exists over the pool and recreational facilities in favor of the Association and its members*

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In their fourth cause of action, Intervenors seek to establish that Seascape Resort Owners' Association (Association) members⁴ have a prescriptive easement in the Resort pools, spas, parking areas, landscaping and other amenities since their use was continuous, open, and visible for over two decades. They allege that the Resort now contends that the pools and other recreational facilities were at all times owned or exclusively controlled by the Resort, but since members obtained a prescriptive easement in these facilities, Resort's efforts to limit access to the amenities constitute unlawful obstruction to members' vested property rights. (Complaint ¶¶ 174-189.)⁵

To establish the elements of prescriptive easement, the claimant must prove use of the property, for the statutory period of five years, which use has been (1) open and notorious; (2) continuous and uninterrupted; (3) hostile to the true owner; and (4) under a claim of right. (*Main Street Plaza v. Cartwright & Main, LLC* (2011) 194 Cal.App.4th 1044.) "The existence or nonexistence of each of the elements of a prescriptive easement is a question of fact." (*Husain v. California Pacific Bank* (2021) 61 Cal.App.5th 717, 726.) The party claiming the easement has the burden of proof on clear and convincing evidence. (*Ibid.*)

The Court does not find that Intervenors have met their burden of proof and there are disputed facts on the issue. For example, the Exclusive Use Common Area (EUCA) is a special subset of the Resort's common area and is "designated for the exclusive use of one or more, but fewer than all, of the owners of the separate interest ...". Under the CC&Rs and governing documents, some of the land and facilities within that common area are expressly designated as EUCA, such as the main pool (Unit 85, owned by the Resort), and the south bluff pool (Unit 534, also owned by the Resort). (Separate Statement of Undisputed Material Facts (SMF) 5, 6, 13.) The Court has already determined that these pools, and the spa, are in the EUCA. (Order, December 31, 2025.) (SMF 5, 6.) Despite Intervenors' argument that Association members have used amenities for decades openly and continuously, other evidence shows the Resort has permitted members' use and has controlled locks and keys to those areas. (SMF 7, 8, 22.) There is also evidence that under Section 3.07(a) of the CC&Rs, the non-exclusive rights of owners to the common area are subordinate to, and shall not interfere with, the exclusive rights over the EUCA. (SMF 15.) The Resort also put forth evidence that it did not tell members during purchase, marketing and ownership that the pools and recreational facilities were owned by or appurtenant to the Association and available to all members. (SMF 16.)

⁴ Association members are those individuals and entities that own condominium units within Seascape Resort.

⁵ The Court notes that Intervenor George Langford opposes this motion and Intervenor Power West Properties, Inc. supports it.

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Disputed facts exist regarding whether unit owners had actual notice through the CC&Rs that any and all use of the EUCA was by permission. The Resort has also presented evidence that under the CC&Rs and governing documents, unit owners expressly agreed that the Resort could exert its rights over its EUCA at any time by seeking enforcement of those rights. (SMF 10, 13, 21.)

Based on these disputed facts, the Court denies the motion for summary adjudication as to whether any prescriptive easement exists over portions of the common area in favor of Association members.

C. Intervenor's second issue – that owners may lawfully self-rent – is not a proper basis for summary adjudication

Intervenor's fifth cause of action for declaratory relief asserts an actual controversy exists as to whether Association members possess valid vested rights to lease or self-rent their separate interests independent of the Resort's management program. (Complaint ¶ 193.) But that is merely one allegation in the declaratory relief cause of action; ruling on this issue will not dispose of it. Since Intervenor fails to identify – either in their memorandum or separate statement – which of their causes of action may be fully adjudicated if the Court were to agree Association members may lawfully self-rent, and since the Court's independent review of the complaint does not find any singular cause of action related to self-renting, the Court has no alternative but to deny the motion on this issue. "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (§ 437c, subd. (f)(1).)

III. REQUESTS FOR JUDICIAL NOTICE

A. Intervenor/moving parties' requests:

1. - 2. Non-certified copies of CC&R's of Seascape Resort, February 27, 1992, and February 10, 1994: Denied; further, 1992 document contains handwritten notes rendering the document different than the recorded instrument.

3. - 5. State of California Department of Real Estate Final Subdivision Public Reports, March 19, 1992, October 8, 1996, and March 11, 1998: Granted.

6., 7., 10., 13. Court records in this action: Denied as the Court need not take judicial notice of its own records.

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8. California Secretary of State Common Interest Development Association, filed January 19, 2022: Granted.
9. State of California Amendment to Certificate of Limited Partnership, October 15, 1992: Granted.
11. Correspondence from County of Santa Cruz County Counsel to Sharon Glenn Pratt and Anna DiBenedetto, May 27, 2025: Denied.
12. County Code sections, unspecified: Denied.
14. County of Santa Cruz TOT Registration Certificate, February 14, 2025: Granted.
15. Real Estate License information, Kyla Ann Piramoon as of 4/15/24, and Secretary of State filing for Holcomb Corporation: Denied
16. Correspondence from Pratt & Associates to Dan and Marcia Wallis, May 5, 2025: Denied.

B. Defendant Seascapes Resort's requests:

1. – 2. Certified copies of CC&R's of Seascapes Resort, February 27, 1992, and February 10, 1994: Granted.
3. Santa Cruz County Code section 13.10.689-1: Granted.
4. Santa Cruz County Development Permit no. 88-0522, August 2, 1989: Granted.
5. Court record in this action, order of December 31, 2025 on Seascapes Resort's Motion for Summary Adjudication: Denied; the Court need not take judicial notice of its own record.
6. Court record in *Aptos Seascapes Corp. v. The County of Santa Cruz*, Santa Cruz County Superior Court no. CV050142, case summary: Granted.
7. Court record in *Aptos Seascapes Corp. v. The County of Santa Cruz*, Santa Cruz County Superior Court no. CV050142, Amendment to Stipulation for Judgment Thereon and Judgment Thereon, June 28, 1989: Granted.
8. – 10. State of California Department of Real Estate Final Subdivision Public Reports, March 19, 1992, October 8, 1996, and March 11, 1998: Granted.

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11. Court record in this action, order of November 3, 2025 on Seascape Resort Owners' Association's Motion to Clarify and/or Modify Preliminary Injunction: Denied; the Court need not take judicial notice of its own record.

12. – 15. Declarations of Annexation, recorded September 27, 1996, January 6, 1997, May 9, 1997 and February 25, 1998, County of Santa Cruz: Granted only for official records; denied as to five photos of County of Santa Cruz tax bills.

IV. OBJECTIONS TO EVIDENCE

A. Seascape Resort's objections:

1. Moving party's Exhibit J, County of Santa Cruz County Counsel letter, May 27, 2025, hearsay: Sustained.

2. Manrao Declaration ¶ 12, hearsay: Sustained.

3. Manrao Decl. ¶ 17, lacks foundation and personal knowledge, hearsay, relevancy: Sustained.

4. Manrao Decl. ¶ 23, lacks foundation and personal knowledge, hearsay, relevancy: Sustained.

5. Manrao Decl. ¶ 25, lacks foundation and personal knowledge, hearsay: Sustained.

6. Manrao Decl. ¶ 27, improper opinion: Overrule.

7. Manrao Decl. ¶ 28, improper opinion: Sustained.

8. Wallis Decl. ¶ 3, hearsay, improper opinion: Sustained.

9. Wallis Decl. ¶ 4, hearsay, improper opinion: Sustained.

10. Wallis Decl. ¶ 9, hearsay, relevancy: Sustained.

11. Wallis Decl. ¶ 10, hearsay, improper opinion: Sustained.

12. Wallis Decl. ¶ 11, hearsay, lacks foundation, relevancy: Sustained.

13. Scorpinito Edens Decl. ¶ 3, hearsay, lacks foundation: Sustained.

14. Scorpinito Edens Decl. ¶ 4, hearsay, lacks foundation, relevancy: Sustained.

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15. Scorpinito Edens Decl. ¶ 5, hearsay, lacks foundation, relevancy: Sustained.

16. Scorpinito Edens Decl. ¶ 8, improper opinion: Overrule.

17. Scorpinito Edens Decl. ¶ 10, lacks foundation and personal knowledge, improper opinion, relevancy: Overruled.

18. Scorpinito Edens Decl. ¶ 11, lacks foundation and personal knowledge, improper opinion, relevancy: Sustained.

19. Scorpinito Edens Decl. Ex. 1, hearsay: Sustained.

20. Caporn Decl. ¶ 2, hearsay, lacks foundation: Sustained.

21. Caporn Decl. ¶ 3, hearsay, lacks foundation and personal knowledge, relevancy: Sustained.

22. Caporn Decl. ¶ 8, hearsay, lacks foundation, misstates testimony, improper opinion: Sustained.

23. Caporn Decl. Ex. 1, County of Santa Cruz County Counsel letter, May 27, 2025, hearsay: Sustained.